

ACME CLOUD PLATFORM
MASTER SERVICE AGREEMENT

1. TERM

This Agreement begins on 1 March 2026 and continues for an initial term of twenty-four (24) months. It renews automatically for successive twelve (12) month terms unless either party gives written notice of non-renewal at least sixty (60) days before the end of the then-current term.

2. FEES

Customer pays an annual platform fee of USD 148,000, invoiced yearly in advance. Overage is billed monthly in arrears at USD 0.11 per thousand API calls above the included volume of 250 million calls per year.

3. PAYMENT TERMS

Invoices are due net forty-five (45) days. Late amounts accrue interest at 1.0% per month or the maximum permitted by law, whichever is lower.

4. SERVICE LEVEL

Acme will make the Platform available at least 99.95% of the time in each calendar month, excluding scheduled maintenance announced at least 72 hours in advance.

Service credits for a monthly uptime shortfall:

Monthly Uptime	Service Credit
99.00% to 99.95%	10% of monthly fee
95.00% to 99.00%	25% of monthly fee
Below 95.00%	50% of monthly fee

Credits are the sole remedy for availability failures and must be requested within thirty (30) days of the affected month.

5. SUPPORT

Severity 1 incidents receive a response within 30 minutes, 24x7. Severity 2 within 4 business hours. Severity 3 within 2 business days.

6. DATA PROTECTION

Acme processes Customer Data only to provide the Platform. Customer Data is encrypted in transit using TLS 1.3 and at rest using AES-256. Acme retains backups for thirty-five (35) days.

7. TERMINATION

Either party may terminate for material breach that remains uncured thirty (30) days after written notice. On termination, Acme will make Customer Data available for export for ninety (90) days, after which it is deleted.

8. LIMITATION OF LIABILITY

Each party's aggregate liability is capped at the fees paid in the twelve months preceding the claim. Neither party is liable for indirect or consequential damages.

9. GOVERNING LAW

This Agreement is governed by the laws of the State of Delaware.